

24STL07314 24STL07314

County: los-angeles

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Department: 26

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Case Number: 24STL07314 Hearing Date: September 14, 2026 Dept: 26

TENTATIVE RULING:

Defendant Crown Poly,

Inc.'s Motion to Vacate Default and Default Judgment is granted. The Court hereby vacates the default entered on March 7, 2025, the default judgment entered on August 12, 2025, and the order to appear for examination entered on July 20, 2026. The Court likewise quashes the Civil Subpoena Duces Tecum served on Defendant on or about July 24, 2026.

As requested, Defendant is ordered to file and serve its response to the Complaint within 30 days of this order.

Analysis:

On October 10, 2024, Plaintiff Complete Forklift Parts, LLC ("Plaintiff") filed the instant action against Defendant Crown Poly, Inc. ("Defendant"). Following Defendant's failure to file a responsive pleading, the Court entered default on March 7, 2025, and default judgment on August 12, 2025. Plaintiff filed an Application and Order for Appearance and Examination on July 20, 2026, with the examination set for September 1, 2026. According to Defendant, it was served with a Civil Subpoena Duces Tecum in connection with the examination. (Motion, Joseph Decl., ¶10 and Exh. H.)

Defendant filed the instant Motion to Set Aside Default on August 6, 2026. Plaintiff filed an opposition on August 31, 2026 and Defendant replied on September 4, 2026.

Discussion

Defendant moves to vacate the entry of default and default judgment pursuant to Code of Civil Procedure section 473, subdivision (d), on the basis that it was never served with the Summons and Complaint. Defendant also moves pursuant to Code of Civil Procedure section 473.5, for lack of actual notice of the action in time to appear.

Code of Civil

Procedure section 473(d)

Defendant argues that it was never served with the Summons and Complaint, such that the Court did not obtain personal jurisdiction over it, rendering the default and default judgment void. (Citing Code Civ. Proc., § 410.50; Ridec LLC v. Hinkle (2023) 92 Cal.App.5th 1182, 1202.) Defendant also argues that the proofs of service of the Summons and Complaint are facially void.

Code of Civil Procedure section

473, subdivision (d) provides that “[t]he court may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc., § 473, subd. (d).) Plaintiff incorrectly argues in its opposition that the deadline to file this motion for relief was six months from entry of default judgment, citing Code of Civil Procedure section 473, subdivision (b). Defendant, however, does not move under subdivision (b), but rather brings its motion under subdivision (d). The language of subdivision (d) contains no deadline.

Plaintiff filed Proofs

of Personal Service of the Summons and Complaint on February 11, 2025 and March 7, 2026. Both proofs of service state that Defendant was personally served by delivery of the papers to “John Doe” at 5700 Bickett St, Huntington Park, CA 90255, on December 12, 2024. (Proofs of Personal Service, filed 02/11/25 and 03/07/25, ¶¶3-5.) Plaintiff does not address Defendant’s argument that service upon “John Doe” is facially invalid. Proof of personal service upon a corporation must identify the relationship of the person served to the corporation. (Code Civ. Proc., § 416.10, subd. (a).) Plaintiff’s proofs of service do not demonstrate that the papers were delivered to a person authorized to accept service on Defendant’s behalf, as required to achieve personal service. (Code Civ. Proc., § 416.10.)

Plaintiff in opposition

argues that service upon “John Doe” was proper because, according to the contemporaneous notes of the registered process server, “John Doe” identified himself as the person authorized to accept service. Plaintiff attaches the declaration of Plaintiff’s counsel Frank Marchetti who testified to obtaining the notes from the online portal of ABC Legal Services, which he retained to perform service. (Marchetti Decl., ¶¶3-6.) The declaration also attaches a photograph taken by the process server, showing her location at the place of service. (Id., ¶¶6-8.) Counsel also attests to receiving a call on February 24, 2025, from a representative of Defendant who stated that Defendant had “received the lawsuit” and was investigating the matter. The declaration also states that counsel advised the person of the need to file an answer. (Id., ¶9.)

No presumption of proper

service applies to facially invalid service.

(Dill v. Berquist Constr. Co. (1994) 24 Cal. App. 4th 1426,

1441-1443.) Plaintiff bears the burden

to show that service was proper. (Ibid.) This evidentiary burden does not demand

strict compliance with the statutory requirements; instead, the plaintiff can

demonstrate substantial compliance. (Id. at 1437.) The evidence of

substantial compliance must establish actual notice to the party to be served.

(Ibid.) The Dill court explained that for a corporate defendant,

this means evidence that the summons was actually received by one of the

persons to be served under Code of Civil Procedure section 416.10. (Ibid.)

Defendant objects to the

process server notes and the account of the phone call as hearsay. The Court overrules the objection as to Counsel’s

statements in the phone call; a declarant’s past statements may be established

by declaration in support of the motion, and the statements are not being

admitted for their truth. The opposing

party’s admissions are admissible. (Evid.

Code, § 1220.) The Court sustains the

objection as to the process server notes.

The Declaration is sufficient to establish that counsel found them in ABC

Legal Service’s online portal, but they are not admissible for the truth of the

matter stated—that the person served stated he was authorized to accept

service. If the process server had

submitted a declaration to that effect, her account of that person’s statement

would have been admissible, and if the statement had been included in her

affidavit of service, it would also be admissible in this context. (See Evid. Code, § 647.) Neither circumstance is at issue.

On this evidence, the

Court finds that Plaintiff has not met its burden to show that the summons was actually received by one of the persons to be served under Code of Civil Procedure section 416.10. The purported

admission by an unidentified person during the phone call that Defendant had “received the lawsuit” is not enough to show substantial compliance with the service statutes. (Dill, 24 Cal.

App. 4th at 1438–39 (“the mere fact that some employee of the corporation received the summons does not necessarily establish substantial compliance.”). Moreover, even were the Court to credit the statement

in the process server notes that “John Doe” stated he was authorized to accept service, that statement does not convince the Court that service was in fact made to a person in fact authorized to receive service. Defendant introduced relevant evidence on this point, including noting that service was made on December 21, 2024, a Saturday at 5:08 p.m., outside of business hours. Declarants Browne and Kermani each state that the 5700 Bicket Street location was closed on December 21, 2024 for the holidays, and because it was a weekend.

(Mot., Brown, Kermani Decls., ¶18.)

The agent for service of process at the time was Ebrahim Simhaee. The proofs of service accurately identify him as the registered agent but nonetheless identify the person to whom the documents were given as “John Doe,” suggesting that the person served was not Mr.

Simhaee. (See Mot., Browne Decl., ¶¶15-9;

(Proofs of Personal Service, filed 02/11/25 and 03/07/25, ¶¶3(b), 6(d).) Indeed, Defendant submits a declaration from Mr. Simhaee stating that he was not present at the service location on that date. The Court has no basis in the record to conclude that John Doe was otherwise one of the persons to be served under Code of Civil Procedure section 416.10.

Conclusion

Defendant Crown Poly,

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Moving party to give notice.